LEGAL NOTICE: PROTECTED POLITICAL COMMUNICATION & ASSEMBLY

This notice is provided to attending officers. We are conducting a **lawful, peaceful protest in a public place**. We are not causing a public nuisance, not obstructing pedestrians and not obstructing traffic.

1. CONSTITUTIONAL BASIS

The Constitution contains an **implied freedom of political communication** (*Lange v ABC*, *1997*). It operates as a limit on legislative and executive power. Animal welfare and agricultural practices are matters of political concern, as made clear in cases; *Levy v Victoria*, *1997*; *Farm Transparency International Ltd v New South Wales*, *2022*.

2. LIMITS ON MOVE-ON DIRECTIONS (LEPRA s 200)

The *Law Enforcement (Powers and Responsibilities) Act 2002* (NSW) **does not authorise** a "move on" direction in relation to an apparently genuine demonstration or protest. The only relevant exceptions are:

- **Safety (Sect. 200 - 3):** the officer believes on reasonable grounds that the direction is necessary to deal with a serious risk to the safety of a person. **Discomfort or offence at the content of a protest is not a safety risk.**
- **Traffic (Sect. 200 - 4):** an unauthorised assembly is obstructing traffic, the officer in charge has authorised directions, and the direction is limited to those obstructing. **We are not obstructing traffic or pedestrians.**

3. THE "OFFENSIVE CONDUCT" THRESHOLD

Under section 4 of the *Summary Offences Act 1988* (NSW), whether conduct is offensive is an **objective test**: *Would it offend a hypothetical reasonable person, who is reasonably tolerant, understanding and contemporary in their reactions (Ball v McIntyre, 1966).* When the conduct is political communication, the courts set a high bar for what counts as "offensive" or "insulting" (*Coleman v Power*, *2004*).

- **The content:** the material displayed depicts **lawful, standard industry practices**, shown to communicate a political message to the public about those practices.
- **Not the officer's opinion:** an attending officer's personal view of the content, or a belief that it is distasteful, is not the legal test.
- **Not a spectator's reaction:** that a passer-by is, or might be, upset by the subject matter does not meet the threshold, **and is not a lawful basis to issue a move on order**.

4. STATUS OF ASSEMBLY (FORM 1)

No notice under Part 4 of the *Summary Offences Act* has been lodged. Lodging one is optional. **The absence of a Form 1 does not make a protest unlawful.** Its only effect is on obstruction offences and the traffic exception above, neither of which applies to us, **as we are not obstructing pedestrians or traffic**.

SUMMARY FOR ATTENDING OFFICERS

1. **Lawful protest:** this is a peaceful protest on a matter of political concern in a public place. We are within our rights to be here.
2. **No obstruction:** we maintain clear space for pedestrians. We do not and will not obstruct traffic.
3. **No safety risk:** our conduct poses no risk to the safety of any person.
4. **Objective standard:** whether conduct is offensive is assessed against the reasonable person, not the personal views of an officer or bystander. We are displaying standard, legal industry practices to the public.
5. **Directions:** we request that any direction be consistent with LEPRA Section 200.

We will comply with any lawful directions. However, please note failing to comply with an unlawful direction is not an offence.

Unless the officers can provide evidence that we are in breach of the conditions of LEPRA Section 200, we would like to continue our peaceful demonstration.

LAW ENFORCEMENT (POWERS AND RESPONSIBILITIES) ACT 2002 - SECT 200

Limitation on exercise of police powers under this Part

200 Limitation on exercise of police powers under this Part

(1) This Part does not authorise a police officer to give a direction in relation to an industrial dispute.

(2) This Part does not authorise a police officer to give a direction in relation to--

(a) an apparently genuine demonstration or protest, or

(b) a procession, or

(c) an organised assembly,

except as provided by subsection (3)-(5) or section 200AA.

(3) A police officer is not precluded from giving a direction in relation to any such demonstration, protest, procession or assembly if the police officer believes on reasonable grounds that the direction is necessary to deal with a serious risk to the safety of the person to whom the direction is given or to any other person.

(4) A police officer is not precluded from giving a direction in relation to any such demonstration, protest, procession or assembly that is obstructing traffic if--

(a) the demonstration, protest, procession or assembly is not an authorised public assembly for the purposes of Part 4 of the *Summary Offences Act 1988* or the demonstration, protest, procession or assembly is not being held substantially in accordance with any such authorisation, and

(b) the police officer in charge at the scene has authorised the giving of directions under this Part in relation to the demonstration, protest, procession or assembly, and

(c) the direction is limited to the persons who are obstructing traffic.

(5) A police officer is not precluded from giving a direction in relation to a demonstration, protest, procession or assembly referred to in subsection (2)(a)-(c) if the demonstration, protest, procession or assembly is being held in an area the subject of a public assembly restriction declaration made under the *Terrorism (Police Powers) Act 2002* , Part 2, Division 3A while the declaration is in force.

Editorial note--: On 16 April 2026, the Court of Appeal of New South Wales in *Jarrett v State of New South Wales [2026] NSWCA 62* declared sec 200(5) invalid.